* * *

As the Government concedes, Congress limited the President's power to remove Governors for good reason—"[t]o preserve the independence of the Federal Reserve" and to continue the "long tradition" of "monetary policy . . . exercised independent of . . . executive influence." Tr. of Oral Arg. 48 (statement of the Solicitor General).

Any change in that scheme must come from Congress, not the courts. That is why we cannot accept the Government's contentions in this case. To do so would allow the President to remove a member of the Federal Reserve at any time, for any reason, without any notice before, and without any judicial check after. That would turn for-cause protection into little more than at-will employment.

To be clear, the ultimate question of whether the President can remove Cook for cause will depend in part on the underlying facts. In this opinion, we have not addressed the facts, as they have yet to be found or analyzed under the relevant legal standards. Rather, we have simply addressed the parties' arguments about the appropriate legal standards under which the facts must be evaluated.

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The application for a stay is denied.

It is so ordered.

JUSTICE KAVANAUGH, concurring.

I join the Court's opinion in full and write separately to emphasize two points.

First, today's interim ruling does not decide whether the President may lawfully remove Governor Cook for cause. The ultimate decision about whether the President may remove Governor Cook for cause will largely depend on the facts regarding the Governor's actions. And those facts have yet to be determined. The Court's opinion today sim-

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junction's limited scope. Cf. *Madsen* v. *Women's Health Center, Inc.*, 512 U. S. 753, 765 (1994) (relief must be "no broader than necessary" to prevent irreparable harm to applicant).)

ply settles some of the legal and procedural ground rules under which (i) the Executive Branch may determine and assess the facts and (ii) courts may then "assess the validity and sufficiency" of any asserted grounds for removal. *Ante*, at 558.

Second, in establishing some of those legal and procedural ground rules, the Court confirms the longstanding historical practice and understanding that the Federal Reserve is an independent agency whose Governors enjoy for-cause removal protection consistent with Article II of the Constitution. The Government itself expressly "acknowledge[d]" and did "not disput[e]" that point in this case, even as the Government simultaneously (and successfully) argued that the for-cause removal protections for most independent agencies violate Article II. Tr. of Oral Arg. 6, 48; see *Trump* v. *Slaughter*, 609 U. S. 422 (2026). Specifically, the Government recognized the "long tradition of having this exercise of monetary policy be exercised independent of . . . executive influence." Tr. of Oral Arg. 48. The Government further "acknowledge[d] what the Court said in *Wilcox*, which is that" the Federal Reserve is "a quasi-private, uniquely structured entity that stands in the distinct historical tradition of the First and Second Banks of the United States, and, therefore, we have not challenged the—the removal restriction in this case." *Id.*, at 6 (referring to *Trump* v. *Wilcox*, 605 U. S. 922, 923 (2025)). The Government also stated that the purpose of the Federal Reserve's independence is to "protec[t] the governors from removal for policy disagreement or for no reason at all." Tr. of Oral Arg. 47. And it added that it does not "dispute the importance of that" independence "for many of the reasons that [Cook's] amici say." *Id.*, at 48.

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I agree with the Court, moreover, that we should not leave open the question whether the Federal Reserve can remain an independent agency in the wake of *Slaughter*. After *Slaughter*, there is a clear choice: Either the Federal Re-

serve may remain independent (with the Governors removable for cause, not at will), or it may not. Leaving that question open would create significant uncertainty about whether the Court might soon eliminate the Federal Reserve's independence, and thereby expose the Federal Reserve to political influences and jeopardize the efficacy of U. S. monetary policy. Even temporary uncertainty about the status of the Federal Reserve could spark political upheaval, including confusion about whether the President could immediately remove multiple Governors at will, as well as turmoil in the U. S. and world economies.

I would not go down that road. I would not risk destabilizing the U. S. economy just so that we can further mull over an issue that, in various permutations, we have been thinking about for many years. As the Court's opinion explains and the Government agrees, the Federal Reserve occupies a unique role in the U. S. Government and maintains critical responsibility for the stability and success of the U. S. and world economies. See *ante*, at 534–539. Most importantly for constitutional purposes, the Federal Reserve follows in a distinct historical tradition of central bank independence that has long coexisted with Article II. That history of course carries great weight in Article II cases. See *Youngstown Sheet & Tube Co.* v. *Sawyer*, 343 U. S. 579, 610–611 (1952) (Frankfurter, J., concurring); *id.*, at 634–638 (Jackson, J., concurring). In my view, in light of that historical practice and precedent, the Federal Reserve may continue as an independent agency after *Slaughter*. If the Federal Reserve's for-cause removal protections are to be eliminated, that change must occur through the legislative process.[1]

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[1] Only JUSTICE THOMAS contends that, under Article II, the Federal Reserve may not remain an independent agency and that the Governors therefore should be removable at will. See *post*, at 587–590 (dissenting opinion).

In short, like the Court, I see no good reason here to unsettle a critical constitutional question that has long been settled and that should remain settled.

* * *

With those additional comments, I join the Court's opinion in full.

JUSTICE JACKSON, concurring.

Whether to issue a stay is fundamentally an equitable determination. Fairness concerns compel courts to ask, in essence, whether a stay applicant "can be made to wait until the conclusion of the litigation to vindicate their purported legal rights, or whether irreparable harm will befall the applicant in the interim such that the court must act early to stave off that damage, for equity's sake." *Noem* v. *Doe*, 605 U. S. 960, 962 (2025) (JACKSON, J., dissenting from grant of application for stay). Because the authority to grant a stay is "justified by the perceived need 'to prevent irreparable injury to the parties or to the public' pending review," *Nken* v. *Holder*, 556 U. S. 418, 432 (2009) (quoting *Scripps-Howard Radio, Inc.* v. *FCC*, 316 U. S. 4, 9 (1942)), the most important considerations are "whether the applicant will suffer irreparable harm absent emergency intervention, as well as the relative harm to the parties and the public interest in the grant or denial of a stay." *Trump* v. *Orr*, 607 U. S. ——, —— (2025) (JACKSON, J., dissenting from grant of application for stay).

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I write separately to explain that, in this case, the Government falls far short with respect to these equitable factors. I have joined the Court's opinion because I also agree that the Government's merits arguments are unlikely to succeed.

On the equities, the Government has not identified any injury whatsoever beyond the harm that a President purportedly suffers when a Governor of the Board of the Federal